

The Claremont City Council held a meeting on Wednesday, June 23, 2021, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O'Hearne
At-Large Councilor Dale Girard
At-Large Councilor Michael Demars
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Debora Matteau
At-Large Councilor Nicholas Koloski
Ward II Councilor James Contois joined via Zoom – home, alone
Ward III Councilor Jonathan Stone

Also present:

Edward Morris, City Manager
Mary Walter, Finance Director

AGENDA CHANGES

None

Councilor Demars requested to have a discussion regarding Councilors' attendance in Council Chambers as a future agenda item.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to accept the minutes of the June 5, 2021, City Council meeting, as amended.

Mayor Lovett said to add on page 14 that there was an agreement that all the information would be put into the packet by Friday, Monday at the latest. The second item is that Councilor Contois requested two items be added to a future agenda: electrification of the City's vehicle fleet and an overview of the trust funds.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren to accept the minutes of the June 9, 2021, City Council meeting, as amended.

Councilor Girard said on page 1 to change Councilor Sweetser to Councilor Demars.

Roll call vote:
O'Hearne - abstain
Girard - yes
Demars - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-0, 1 abstain.

MAYOR'S NOTES

Retirement Proclamations for Peggy Watson and Mary Walter

Mayor Lovett presented a retirement proclamation to Peggy Watson, Assistant Welfare Director, who was retiring after over 20 years of service to the City of Claremont.

Ms. Watson said that it has been an honor to work for the City.

Mayor Lovett presented a retirement proclamation to Mary Walter, Finance Director, who was retiring after over 20 years of service to the City of Claremont.

Mayor Lovett said that Amtrak will resume passenger service on July 19 on the Vermonter line.

CITY MANAGER'S REPORT

- **Water Shutoff Update** — As of the date this report was written, the water shutoffs for past due bills from 8/28/2020 are down to four properties (one of which is vacant). The second round of shutoffs is scheduled for mid-July.

As of right now, we have three properties shut off and we believe that two are vacant. Part of the first phase rental units have until next week before shutoff. There are 17 units. Middle of July, 40 properties are scheduled to be shut off, but we expect most to be taken care of before then.

- **Paving Updates** – The City is finishing up its FY2021 paving with the paving of Red Water Brook Road, from Old Coach Rd. to Route 120. We will also be fog sealing and crack sealing, to keep up with preventative maintenance, before the end of the month. Summer paving for the FY2022 budget will take place in September or October, with the exception of Elm Street and Cat Hole Road, but the dates for the repair and repaving of these roads has not yet been determined.

Update: The fog sealing and crack sealing contractor had an issue, so that will happen in July.

He spoke to Steve Wilkie, Sullivan County ATV Club (SCATV) President, who confirmed that the Governor and Council have approved the grant funds that will be used to pave a portion of Cat Hole Road.

- **Upcoming Community Events** – The Claremont Parks and Recreation Department has partnered with local businesses and organizations to host many community events this summer. Listed below are a few of the upcoming events:

Join us at Broad Street Park on June 24th at 6PM for a **free concert** by the incomparable BASSEL AND THE SUPERNATURALS. This event is presented by Claremont Parks and Recreation and the West Claremont Center for Music and the Arts.

The All-Out Trail Run is part of the Western New Hampshire Trail Running Series and will take place in Moody Park on Saturday, June 26, at 9AM. The course is a 4.61-mile course and is ideal for all running levels. For more information or to register, visit www.claremontparks.com.

July 4th Festivities will begin at Monadnock Park at 6 PM with many local vendors on hand selling food, drinks and novelty items. American Cheese is the featured entertainment. The fireworks show will start at 9:30 PM. This event would not be made possible without the support from your local McGee Toyota of Claremont. The rain date for this event will be on July 5th. Schedule of Events - 6 PM - Food Vendors Open, 6:30 PM - 9:30 PM - American Cheese Performance, 9:30 PM - Fireworks Presented by McGee Toyota.

ATV update: Over the past two weekends, they have had 20 trail patrols, approximately 212 hours. Also, Fish & Game, and the Claremont Police Department were out on both weekends. SCATV is still working on the trail patrol shack and possible video surveillance.

- **COVID-19 Update** – At the time this report was written, active COVID-19 cases throughout the State of New Hampshire have continued to decline with a 28% decrease in active cases across the state from June 10, 2021, to June 16, 2021, with a daily average of 35 new cases. The City of Claremont currently has 7 active cases.

Update: Claremont's numbers continue to decline and we are currently in the 1-4 range.

Vaccinations are now available for anyone over the age of 12 in the State of New Hampshire (resident or non-resident). Drop-in vaccinations are also available. This means it is not required for people to make an appointment through the State. Citizens can go to Walmart or CVS Pharmacies to receive COVID-19 vaccinations. As of June 14, 2021, New Hampshire's vaccination rate is 52.4% fully vaccinated and 60.4% with one dose. Sullivan County currently has 50.5% that are fully vaccinated and 57.7% have received one dose.

As we enter the summer season, the City is working with local organizations to plan and bring back many community events. We ask everyone to please be mindful and respectful of others by maintaining the proper social distancing and to wear masks when this is not possible.

Councilor Matteau expressed her concern that the water shutoffs could potentially send families to the Welfare Department. Mr. Morris said it is the belief that the majority of the bills will be paid. Code Enforcement and Legal Aid could get involved, if necessary.

Councilor Koloski requested that financial assistance information be included with the next water shutoff notices.

CITIZEN'S FORUM

None.

OLD BUSINESS

Legislative Update

State Senator Sue Prentiss, District 5, provided a Legislative Update. She had previously served on the Lebanon City Council for 12 years. She wanted it known that she is a paramedic and that she has worked for Dale Girard at Golden Cross Ambulance. She said the proposed State budget is \$13.5 billion, which is up from the last biennium, which was \$12.9 billion. Rooms & Meals Tax revenue sharing is expected to return. SB99 was put into HB2. An estimated \$40 million will go to communities, if it makes it past the finish line. There is \$50 million in clean water grant funds. \$15.6 million SAG reinstated. \$25 million to state & localities to support affordable housing. \$1 million for body cameras for matching grant funds for local levels. Public education, it has been 30 years since the first Claremont decision. Legislature is not done

with that work, yet. She is concerned about funding private education before fixing public education. \$30 million for a new facility for mental health; staffing is an issue. Net metering SB315 passed. Incentivized exception exemption for solar arrays.

Walt Stapleton, ward 3, State House Representative, gave some highlights, including that there were 1300-1400 bills. He went over some highlights of the proposed 2022-23 State budget.

Ordinance 586 Water Rates – First Reading

The purpose of this proposed change is to amend the City's water rates in order to establish new rate schedules for the next five (5) fiscal years from 2022 to 2026. The changes to these rates reflect the City's needs to address estimated operating costs, depreciation and existing debt obligations of the Claremont Water System. The increases to each rate schedule seek to implement an incremental change for each fiscal year in order to responsibly introduce such charges for the City's water users in a fashion that does not impose a drastic financial impact for any particular fiscal year covered by this amendment.

It is the hope of the City that the slight annual increase to these water rates, for each fiscal year under this amendment, will be a gradual and acceptable way to address the financial needs of the City's Water System during this timeframe, but avoids users experiencing an extreme increase of cost in any of the years under these new schedules. This change is requested by the City Manager.

Alex Gleeson, Public Works Director, said that adjustments were made as requested. These are gentle increases.

A motion was made by Councilor Koloski and seconded by Councilor Matteau to suspend Council Rules in order to just read the Explanation of Proposed Action into the record.

Roll call vote:

O'Hearne - no

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-1.

A motion was made by Assistant Mayor Damren and seconded by Councilor Koloski to adopt Ordinance 586 Water Rates on first reading.

Assistant Mayor Damren read the Explanation of Proposed Action into the record.

Roll call vote:

O’Hearne - no

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 7-2.

Ordinance 588 Sewer Rates – First Reading

The purpose of this proposed change is to amend the City’s sewer rates in order to establish new rate schedules for the next five (5) fiscal years from 2022 to 2026. The changes to these rates reflect the City’s needs to address estimated operating costs, depreciation and existing debt obligations of the Claremont Sewer System. In addition, the Ordinance seeks to amend the City’s Code in order to reflect that these sewer rates will be charged, going forward, on a quarterly basis rather than, the semiannual basis that currently exists within the Code. As with the City’s water rates, the City is seeking to implement incremental changes to the sewer rates in order to avoid drastic increases, in any particular fiscal year, for users of the City’s Sewer System.

It is the hope of the City that changing the sewer rates and by creating additional billing periods for each fiscal year, will provide for the financial needs of the Sewer System in a responsible and gradual fashion. This change is requested by the City Manager.

Mr. Gleeson said that amendments were made as requested.

Mayor Lovett asked about renumbering the subsections of Section 2 so that they are less confusing. This is not a substantial change.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to suspend Council Rules in order to just read the Explanation of Proposed Action into the record.

Roll call vote:

O’Hearne - no

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - no

Contois - yes
Stone - yes
Lovett - yes
Motion carried 7-2.

A motion was made by Councilor Girard and seconded by Councilor Koloski to adopt Ordinance 588 Sewer Rates on first reading.

Councilor Girard read the Explanation of Proposed Action into the record.

Councilor O'Hearne asked if the section number changes would need to be read. Councilors didn't think that was required.

Roll call vote:
O'Hearne - no
Girard - yes
Demars - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - no
Lovett - yes
Motion carried 7-2.

NEW BUSINESS

Resolution 2021-34 Encumbrances – Public Hearing

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, that it hereby adopts the following for the 2021 encumbrances: *(Majority vote required)*

Dept #	Department - General Description	Amount	Detailed Description
411	Policy/Executive	\$ 30,000	Re-Encumber \$25,000 for Code Enforcement/Property Maintenance from FY20 and another \$5,000 from FY21
413	Elections	\$ 3,750	Encumber and Transfer to Capital Reserve to replace aging Voting Equipment
416	Planning & Development	\$ 5,000	Vegetation Control

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417	General Services	\$ 81,000	Compensation Reserve
421	Police	\$ 40,000	Re-Encumber for Purchase of Lockers and upgrades to existing shower areas
421	Police	\$ 8,000	Continued improvements in the booking room to include equipment and safety measures.
421	Police	\$ 110,146	Cover descending share of COPS grant if awarded
421	Police	\$ 5,000	Additional Advertising of open positions at the CPD
421	Police	\$ 30,000	Re-Encumber Recruiting Bonus: Would like to continue carrying over funds in hopes of attracting qualified candidates.
434	Sanitation	\$ 3,500	Move "Put & Take" building to use as Transfer Station office space; will need to be wired for electric & phone, be insulated, painted etc.
441	Highway	\$ 18,000	Purchase tires for vehicles
441	Highway	\$ 65,000	Add to Paving / Resurfacing various roads
450	Library	\$ 20,000	Carpeting in Library
471	Cemetery	\$ 1,600	Remove trees at Pleasant St. Cemetery between the building and the street
471	Cemetery	\$ 6,000	Plant maple trees at Pleasant St. Cemetery to replace trees taken down
TIFD	P&D - Downtown TIFD	\$ 25,000	Re-encumber Engineering services and demolition costs anticipated for the old Sullivan tower/wheelhouse
	Total Request to Encumber into FY 2022	\$ 451,996	To use the General Fund monies (\$426,996) and TIFD monies (\$25,000) already raised on the tax rate for projects, services or equipment that were not able to be completed in the current Fiscal year.

Mayor Lovett said that Mr. Morris had said there was \$1,900 left in Misc Expenses – Council Requests and that if Councilors wished to encumber that money, they could do so.

Councilors agreed they want to encumber those funds in the 411, Policy/Executive budget. The amount changes to \$31,900. The new bottom line of the resolution is \$453,896 and the Detailed Description, “To use the General Fund monies” will change to \$428,896.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to adopt Resolution 2021-34 Encumbrances.

Assistant Mayor Damren read the resolution into the record including the changes listed above.

Regarding the re-encumbrance of the \$30,000 Police Recruiting Bonus, Police Chief Mark Chase said for those qualified recruits, they sign a three-year contract with the City.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Budget Hearing and Vote

Resolution 2022-1 Tax Anticipation Note – Public Hearing

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, pursuant to the Municipal Finance Act, that the City Treasurer, with the approval of the City Manager, is hereby authorized to issue and sell notes of the City of Claremont, in an amount not to exceed \$4,000,000.00 in anticipation of receipt of taxes for the fiscal year 2022.

Such amount will not exceed the total tax levy for the year 2021. *(Majority Vote Required)*

At last night’s Council meeting, which adjourned at 8:54 p.m., Councilors had directed the City Manager to find an additional \$15,000 for Paving and an Additional \$40,000 to fund a half-time Grant/Zoning Administrator in the Planning and Development Department. A list, with the bottom-line changes was left on the Council table for each of the Councilors. Some of the Councilors were concerned that they did not have enough time to review the information.

Mr. Morris said he had started the work of finding the extra funds this morning and finished the work at 4:45 p.m. today. He worked with the Finance Director and Department Heads to make multiple smaller changes throughout the budget. He was able to find \$50,350 in expenditures and \$5,000 was added in Revenue for the Grant Administrator. We will be able to recoup some of those administrative fees.

Ms. Walter read all the proposed changes.

Mr. Morris said he made changes that would not affect service levels. This made the Paving budget \$800,950, and if we revisit the budget at the January timeframe and look at vacancies throughout the City, and Revenues, he's estimating that we could come up with an additional \$200,000, to bring the Paving budget to just over \$1 million.

The City's portion of the tax rate would stay the same as proposed, \$15.17.

Councilors discussed some of the changes. Some expressed discomfort at not having enough time to review the changes and requested the detailed changes be sent to the Councilors.

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to table the budget discussion to Wednesday.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - no

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - no

Motion carried 6-3.

Resolution 2022-2 To Adopt the 2022 General Fund Budget for the City of Claremont

Moved to June 30.

Resolution 2022-3 To Adopt the 2022 Water Division Budget for the City of Claremont

Moved to June 30.

Resolution 2022-4 To Adopt the 2022 Sewer Division Budget for the City of Claremont

Moved to June 30.

Resolution 2022-5 To Adopt the 2022 Downtown Tax Increment Finance District Budget for the City of Claremont

Moved to June 30

Change Street Name - Old Sewer Plant Road to Vineyard Valley Place – Public Hearing

Mr. Morris said the City was approached by the property owner regarding changing the name of Old Sewer Plant Road to Vineyard Valley Place. The Traffic Advisory Committee discussed it and approved of the change going forward to the Council.

Chief Chase said there is no conflict with 9-1-1. It is a private road; it was not changed from a Road to a Place during the 9-1-1 changes.

Jeremy Clay, Assistant Public Works Director, said that it is not maintained by the City. The City will provide the first street sign, but after that, it is up to the property owner to maintain and/or replace the sign, if needed.

Mr. Morris said all parcels along that road are owned by the property owner making the request.

A motion was made by Councilor Girard and seconded by Assistant Mayor Damren that the owner of 104 Lafayette Street, which includes Old Sewer Plant Road, wishes to develop the area and would like to change the name of Old Sewer Plant Road to Vineyard Valley Place. The person requesting the name change owns all the parcels off this road. Therefore, the City of Claremont City Council hereby authorizes the City Manager to work with the property owner to change the name of the road to Vineyard Valley Place.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Ordinance 584 Remove No Parking on Charles Street - Pleasant to Highland – First Reading

Mr. Morris said he had received some information regarding the reasons this was implemented in the first place and he asked to withdraw the ordinance.

Withdrawn.

FUTURE AGENDA ITEMS AND DIRECTIVES

A motion was made by Councilor Koloski and seconded by Councilor Stone to suspend Council Rules in order to discuss having Councilors in Council Chambers.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - no

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 7-2.

Councilor Demars was concerned that these meetings are pretty long. One Councilor joining the meeting virtually, requires a roll call for every vote and that adds to the time. He feels there is a tangible loss that occurs by not meeting face to face. However, he did say that for the meeting next week, he would be on vacation, so he will call in. He has an issue with Councilors remoting in for the long term.

Councilors discussed the fact that the Governor had allowed the State of Emergency to end. They referenced RSA 91-A.

Councilor Contois said that the pandemic was not over. He referenced RSA 91-A2,III, and a legal opinion from NHMA. He said he will not go into buildings where people are unmasked and that the law supports that.

Mayor Lovett discussed an email she received about an effort to ask Climate Mayors to sign a letter to Congressional leadership advocating appropriating funds for infrastructure. She said it is important that Claremont advocate for its fair share. Unless told otherwise, she intends to sign the letter.

Councilor Koloski asked the City Manager to go through the list of action items from the last several meetings to see if any items need to be added to a future agenda.

Mayor Lovett said the July 14th agenda is packed. She has a running list of all the things that need to go onto an agenda. On the second meeting in July, we need to add Sustainable Workforce Compensation Discussion.

Mr. Morris said that if any of the Councilors has something they want to make sure goes on an agenda, to let us know.

Mr. Morris listed action items:

- Add information about payment plans to shutoff notices
- Clarify section numbers for the water/sewer rates ordinances before the next meeting
- Councilor Matteau asked for a detail of the budget changes before the meeting next week

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:53 p.m., a motion was made by Councilor Matteau and seconded by Councilor O’Hearne to adjourn.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council